

**PASSED**

**CHICKASAW TRIBAL LEGISLATURE**

**Permanent Resolution Number 13-01  
Amendment of Title 2, Legislative Salary and Allowances.**

**WHEREAS,** in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

**WHEREAS,** in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

**WHEREAS,** the members of the Chickasaw Tribal Legislature are available, at any time, to respond to the needs of the citizens of the Chickasaw Nation, and

**WHEREAS,** the privileges, duties and powers of the Chickasaw Tribal Legislature under the Constitution of the Chickasaw Nation instill the obligation of the Tribal Legislators to respond to those needs of the citizens of the Chickasaw Nation.

**NOW, THEREFORE, BE IT RESOLVED,** that the Chickasaw Tribal Legislature adopts the following amendments to Section 2-426 of Title 2 of the Code of the Chickasaw Nation, only as indicated:

Amend the second sentence in the first paragraph of Section 2-426, to read as follows:

Tribal Legislators are entitled to a salary and allowances in accordance with Amendment IV of the Constitution of the Chickasaw Nation.

Part (A) of Section 2-426 shall be deleted and part (B) shall be re-designated part (A) and amended to read as follows:

(A) A Legislator's monthly salary shall be \$2,084.00, provided, however, that a Legislator may choose, by written notice to the Recording Secretary of the Legislature, to be paid on a scale that will be in keeping with the provisions or requirements of his/her retirement and/or Social Security income. Legislators shall be entitled to enroll in the retirement program of the Chickasaw Nation. Applicable taxes and other deductions from salary shall be in accordance with tribal policy. (See provisions on election for Self-Employment taxes in part (B).) The legislators that are chosen as Chairperson or Chairperson Pro

**PR13-01 - Amendment of Title 2, Legislative Salary and Allowances.**  
**Page 2 of 2**

Tempore and as Secretary or Secretary Pro Tempore of the Chickasaw Tribal Legislature, shall be entitled to receive an additional allowance. Those allowances are as follows:

(1) The Chairperson or the Chairperson Pro Tempore shall receive an additional \$250.00 per month for the duration of the time in which he serves in that capacity.

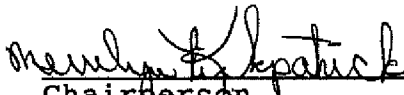
(2) The Secretary or the Secretary Pro Tempore shall receive an additional \$150.00 per month for the duration of the time in which he serves in that capacity.

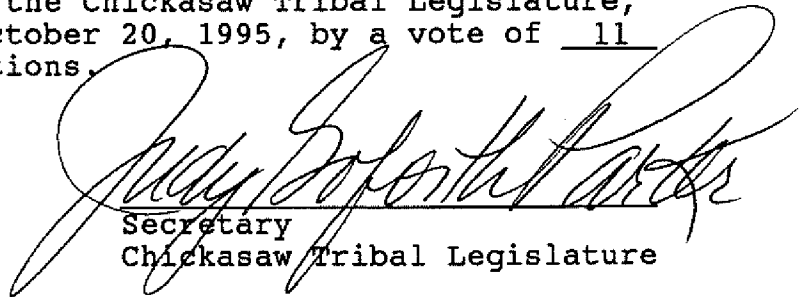
(3) All Legislators shall receive a 3% cost of living allowance on October 1, 1997, and another 3% cost of living allowance on October 1, 1998.

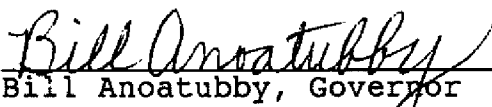
Part (C) shall be deleted and part (D) shall be re-designated as part (B)

Part (E) shall be re-designated as part (C)

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on October 20, 1995, by a vote of 11 ayes, 2 nays, 0 abstentions.

  
Chairperson  
Chickasaw Tribal Legislature

  
Secretary  
Chickasaw Tribal Legislature

Concur:   
Bill Anoatubby, Governor  
The Chickasaw Nation

Date: OCT 20 1995

**Permanent Resolution Number 13-01**  
**Amendment of Title 2, Legislative Salary and Allowances.**

**Explanation:** Mr. Tim Colbert and Mr. Robert Walton have proposed some changes to the Permanent Resolution, recently passed, regarding salary and allowances for elected officials. This legislation is designed to remove the "part-time/full-time designations that were stated in the previous legislation. Adoption of this resolution means that all Tribal Legislators receive the same base salary. However, Legislators can choose to modify their salary to accommodate any retirement or Social Security problems regarding their income and benefits, by giving notice in writing to the Recording Secretary of the Legislature. All parts of Section 2-426 of the Code that are affected by this change would be amended to reflect that change. The compromise changes in this resolution were provided by Mrs. 'Rena Duncan, in accordance with recommendations of the Legislative Committee.

**Requested by:** Mr. Tim Colbert and Mr. Robert Walton, Legislators

**Presented by:** Mevelyn Kirkpatrick, Chairman  
The Legislative Committee